

preliminary approval) is sufficient. Counsel goes on to say, “If there are any delays we will be sure to provide those class members who purchased from AMMP [*sic*] additional time to make a claim, opt out or object and we will advise the Court of these issues prior to final approval.” (Friedman Decl., ¶ 8.)

Rather than grant preliminary approval that could result in two different timelines depending on the timing of receipt of subpoenaed records, the court on its own motion continues the motion for preliminary hearing once more to be heard on **August 11, 2026 at 8:30 a.m. in Department 32**. Please note the new department. By July 28, 2026, plaintiff shall file and serve a notice of continued hearing and supplemental declaration(s) to update the court on whether the subpoenaed information has been received or negotiated.

10. S-CV-0050979 Pearson, James v. Kaiser Found. Hospitals

Defendants are advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendants Kaiser Foundation Hospitals and The Permanente Medical Group, Inc. (“Kaiser defendants”) move for summary judgment contending the undisputed facts show they did not violate the ADA, the California Unruh Act, or the California Disabled Persons Act. Plaintiff opposes the motion.

The motion is supported by insufficient notice. A motion for summary judgment “shall be served on all other parties to the action at least 81 days before the time appointed for hearing.” (Code Civ. Proc., § 437c, subd. (a)(2).) Notice is extended by two court days when, as here, service is by electronic means. (Code Civ. Proc., § 1010.6, subd. (a)(2)(B).) Here, the motion was served on the 81st day without accounting for the two additional court days’ notice for electronic service. The motion for summary judgment or adjudication is denied due to insufficient notice.

11. S-CV-0053141 Hostler, Grace v. Ternavsky, Alex

Counsel is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Be Relieved as Counsel

The motion to be relieved as counsel is denied without prejudice. Counsel declared they served the client by mail at the client’s last known address, and that they confirmed the address was current by correspondence, addressed to the client at her last known address, which had not been returned undeliverable. However, this act alone is insufficient to demonstrate the address is “current” pursuant to California Rule of Court 3.1362(d). (Cal. Rules of Court, rule 3.1362(d).)

The court also observes that counsel listed the address to Madera County Superior Court on form MC-052, which could potentially create a notice issue.

12. S-CV-0054299 Gomez, Hector Ortega v. Entrussed

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement and plaintiff's moving papers filed in connection with the motion, the supplemental declaration of counsel and exhibit thereto, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class for the purposes of settlement as, "all non-exempt employees who are or previously were employed by Entrussed, LLC ("Defendant") in California ("Class") between December 24, 2020 to December 29, 2025 ("Class Period")."

The court preliminarily approves the class action and PAGA action settlement agreement attached as Exhibit A to the declaration of counsel Barvie filed on April 17, 2026.

The court also approves the proposed form of class notice attached to Exhibit A to the declaration of counsel Barvie, with three small changes: The proposed notice references the final approval hearing on page 3 and twice on page 11 and in all three places specifies Department 40. The Department for the final approval hearing shall be Department 32. With this change, the court approves the proposed class notice.

The court appoints and designates Hector Ortega Gomez as the class representative. The court appoints and designates Barvie Law, APC as class counsel for the purpose of settlement. The court appoints and designates Apex Class Action, LLC as the settlement